

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Max Gross	Team: Team # 3	CCRB Case #: 201001407	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 01/26/2010 7:30 PM	Location of Incident: South Railroad Avenue and Tysens Lane	18 Mo. SOL 7/26/2011	Precinct: 122		
Date/Time CV Reported Tue, 01/26/2010 9:26 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/01/2010 11:18 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Metsopulos	05821	937101	122 PCT
2. POM Paul Rivera	05644	940050	122 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Paul Rivera	Abuse: Officer Paul Rivera stopped § 87(2)(b)	A . Substantiated
B . POM Joseph Metsopulos	Abuse: Officer Joseph Metsopulos stopped § 87(2)(b)	B . Substantiated
C . POM Paul Rivera	Abuse: Officer Paul Rivera frisked § 87(2)(b)	C . Substantiated
D . POM Paul Rivera	Abuse: Officer Paul Rivera searched § 87(2)(b)	D . Unsubstantiated
E . POM Paul Rivera	Abuse: Officer Paul Rivera refused to provide his name to § 87(2)(b)	E . Unsubstantiated
F . POM Joseph Metsopulos	Abuse: Officer Joseph Metsopulos refused to provide his name to § 87(2)(b)	F . Unsubstantiated

Case Summary

On January 26, 2010, § 87(2)(b) was present inside of the 122nd Precinct station house to file this complaint, which was initially forwarded to the Internal Affairs Bureau (IAB) on the same date [Enc. 4]. On February 1, 2010, this complaint was forwarded to the CCRB [Enc. 5].

On January 26, 2010, at 7:30pm, § 87(2)(b) was walking close to the intersection of South Railroad Avenue and Tysens Lane in Staten Island when he encountered Officer Paul Rivera and Officer Joseph Metsopulos of the 122nd Precinct's anti-crime unit. The following allegations resulted:

- **Allegation A) Officer Paul Rivera stopped** § 87(2)(b)
- **Allegation B) Officer Joseph Metsopulos stopped** § 87(2)(b)
- **Allegation C) Officer Paul Rivera frisked** § 87(2)(b) § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- **Allegation D) Officer Paul Rivera searched** § 87(2)(b) § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- **Allegation E) Officer Paul Rivera refused to provide his name to** § 87(2)(b)
- **Allegation F) Officer Joseph Metsopulos refused to provide his name to** § 87(2)(b)
§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Mediation was offered to § 87(2)(b) which he rejected.

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b) [Enc. 7A-G]

- § 87(2)(b) is a § 87(2)(b)-old black male § 87(2)(b)
He has black hair and brown eyes.

Shortly after the incident on January 26, 2010, § 87(2)(b) called 911 and had a brief conversation with the operator stating he had been “harassed by police” and that they had taken his phone [Enc. 14A]. § 87(2)(b) disconnected while his call was being forwarded to the IAB Command Center. On February 12, 2010, § 87(2)(b) was interviewed at the CCRB. His statements were consistent with a brief phone statement he provided to the CCRB on February 5, 2010. His complaint is summarized below.

On January 26, 2010, at approximately 7:30pm, § 87(2)(b) was walking down South Railroad Avenue close to Tysens Lane in Staten Island. § 87(2)(b) was wearing a black leather jacket over a black hooded sweatshirt, black sweatpants, and a navy blue Yankee cap. § 87(2)(b) was walking from his home located at § 87(2)(b) and headed to a nearby store to purchase some food. § 87(2)(b) was walking with headphones in listening to

music via his cell phone (a blue “Tony Hawk” model Sidekick LX). After walking one and half blocks from his residence, § 87(2)(b) was approached from behind by two plainclothes officers, identified by the CCRB as Officer Paul Rivera and Officer Joseph Metsopulos of the 122nd Precinct. Officer Rivera, described as a Hispanic male, approximately 5’6”-5’7” feet tall with a medium build, approached § 87(2)(b) from behind and took hold of his right arm and began pulling § 87(2)(b) towards an unmarked navy blue sedan parked by the curb. Officer Metsopulos, who was described as a white male, approximately 6’0”-6’1” feet tall with an athletic build, stood nearby. § 87(2)(b) was not aware of the officers’ presence and had not observed their unmarked vehicle prior to being stopped. § 87(2)(b) was “in shock” but was not resisting Officer Rivera’s attempts to bring him toward the vehicle. Officer Rivera pulled § 87(2)(b) towards an unmarked vehicle and pushed him up against the side of the hood of the car. § 87(2)(b)’s stomach and knees struck the vehicle.

Once up against the vehicle, § 87(2)(b) was frisked by Officer Rivera. § 87(2)(b)’s entire body was frisked, from under his armpits to all the way down to his feet. While he was getting frisked, the officers informed § 87(2)(b) that they were police officers. § 87(2)(b) did not observe either officer with their badge over their jackets. While frisking him, Officer Rivera asked § 87(2)(b) “Where are you coming from?” and “Where are you going?” § 87(2)(b) answered that he was coming from his home and was going to the store. Officer Rivera then asked “What’s your name?” § 87(2)(b) replied, § 87(2)(b). Officer Rivera, believing that § 87(2)(b) was giving a fake name, told § 87(2)(b) to stop giving evasive answers, and continued to frisk § 87(2)(b). § 87(2)(b)’s left headphone popped out of his ear and began dangling on the side playing music. Upon hearing the music, Officer Rivera followed § 87(2)(b)’s headphone wire to his left front pants pocket and removed § 87(2)(b)’s cell phone. § 87(2)(b) had his phone, his keys, and some loose money in his pants’ pockets. Officer Rivera reached inside, and removed § 87(2)(b)’s cell phone, taking it into his hand. § 87(2)(b) asked both officers “What are your names?” Both of the officers ignored § 87(2)(b). § 87(2)(b) said he asked the officers for their names at a loud volume and he believed that they both heard his request.

§ 87(2)(b) was then allowed to get off the vehicle, and the two officers simply got into their vehicle and left without providing § 87(2)(b) with their names. Officer Rivera got into the passenger seat and Officer Metsopulos got into the driver’s seat. § 87(2)(b) did not ask why he was stopped and the officers did not provide § 87(2)(b) with an explanation for his stop. Officer Rivera was still in possession of § 87(2)(b)’s phone when the officers left. § 87(2)(b) felt intimidated and did not ask Officer Rivera to return his cell phone as he was getting into his vehicle. Before the officers left, § 87(2)(b) was able to memorize the license plate number of the vehicle as “§ 87(2)(e), § 87(2)(b)”.

After the incident, § 87(2)(b) walked from his house to the 122nd Precinct Station house and filed a complaint. § 87(2)(b)’s cell phone was eventually returned to his mother, Raphaelita § 87(2)(b) while she was at work by Officer Rivera and Officer Metsopulos. The officers told § 87(2)(b) “That they stopped § 87(2)(b) because they believed that he had a knife in his pocket.”

Witness: § 87(2)(b) [Enc. 8]

- On February 16, 2010, § 87(2)(b) was contacted by telephone. § 87(2)(b) did not witness the incident, however, she retrieved § 87(2)(b)'s cell phone from the officers approximately 20 minutes after the incident concluded. She provided the following statement.

At an unknown time on the evening of January 26, 2010, § 87(2)(b) received a phone call on her cell phone from an officer who identified himself as "Detective [Officer] Rivera". Officer Rivera informed § 87(2)(b) that they had § 87(2)(b)'s cell phone because he had "left it on the roof of their vehicle" during a police stop. § 87(2)(b) who is a § 87(2)(b), informed the officers that she was at work and that they could come and give her the phone at work. The officers arrived at the facility after about twenty minutes later and § 87(2)(b) came outside to meet them. An officer, identified by § 87(2)(b) by name as Officer Rivera told § 87(2)(b) that they stopped § 87(2)(b) because it appeared that he "had something in his waist." § 87(2)(b) spoke to the officers briefly, and she told the officers that she was "tired of the harassment" but did so in a polite way. Officer Rivera handed § 87(2)(b) his memo book and asked her to print and sign her name to indicate that she received § 87(2)(b)'s property, before returning his cell phone and leaving the scene.

NYPD Statements

Subject Officer: OFFICER PAUL RIVERA, 122nd PRECINCT

- Officer Rivera is a light-skinned Hispanic male § 87(2)(b). He has brown hair and brown eyes.
- On January 26, 2010, Officer Rivera worked from 5:30pm to 2:00am and was assigned to anti-crime. He was working with Officer Metsopulos, dressed in plainclothes, and assigned to an unmarked Chevrolet Impala § 87(2)(e), § 87(2)(f).

Memo Book [Enc. 9A-C]

At 7:45pm, Officer Rivera noted "Male stopped in front of § 87(2)(b) for CPW. Bulge in waistband walked off without cell phone 3 minutes later." At 8:00pm, he wrote, "Males mother contacted in regards to cell phone." At 8:05pm, Officer Rivera noted, "Cell phone returned to mother at § 87(2)(b)."

UF-250 Stop-and-Frisk Report [Enc. 10A-B]

On January 26, 2010, Officer Rivera completed a UF-250 in regards to the stop and frisk of § 87(2)(b). § 87(2)(b) was stopped and frisked (no search noted) under the suspicion of criminal possession of a weapon. The circumstance leading to his stop was "suspicious bulge/object- bulge in waistband." Additional factors were, "Refusal to comply with officers' directions", "Furtive movements" and "other- suspicious bulge." The physical force implemented was noted as "hands on suspect" and "suspect against wall." The duration of the stop was noted as one minute, and § 87(2)(b) had been observed for one minute prior to his stop. The report makes no reference of § 87(2)(b)'s demeanor. The investigation attempted to obtain a handwritten copy of Officer Rivera's report; however, the 122nd Precinct was unable to locate the handwritten UF-250.

CCRB Statement [Enc. 11A-C]

On April 2, 2010, Officer Rivera was interviewed at the CCRB. On January 26, 2010, at approximately 7:30pm, Officer Rivera and Officer Metsopulos were driving in the vicinity of

South Railroad Avenue and Tysens Lane. Officer Rivera described that area surrounding the intersection as a predominately residential area which is split down the middle by train tracks from the Staten Island Railroad. On the date of the incident, Officer Rivera had worked anti-crime in the 122nd Precinct for approximately 18 months and explained that the area has had problems with robberies, vehicle thefts, and burglaries in the past. On that particular evening, there was not a report of a recent robbery in the area or other past report of a crime. Officer Rivera had not been made aware of any robbery pattern in that particular area before starting his tour, and they had not received any description of any crime suspect.

As they patrolled the area, Officer Rivera, who was seated in the passenger seat of the vehicle, observed a black male, identified via investigation as § 87(2)(b) walking down the street. Officer Rivera could not recall how long they had been in the area before observing § 87(2)(b) on the street. § 87(2)(b) was walking on Officer Metsopulos' side of the street (Officer Rivera observed § 87(2)(b) through the window and across his partner). Officer Rivera observed § 87(2)(b) walking with headphones in his ears and holding his waistline up with one hand. § 87(2)(b) was wearing sweatpants, but Officer Rivera did not remember the rest of his attire at the time. Officer Rivera explained that when someone is carrying a weapon, it weighs down their pants, making them hold up their pants while they walk in the manner which § 87(2)(b) was walking, which raised his suspicion. Officer Rivera estimated that he was 10 feet away from § 87(2)(b) when he observed him holding up his pants. § 87(2)(b)'s hand was out of sight, but did not appear to be inside of one of his pockets, instead it was concealed by clothing hanging over the waistline. Officer Rivera observed § 87(2)(b) walking like this for approximately one minute. Although it was dark at the time, § 87(2)(b) was visible within the glow of the street lights.

The officers drove past § 87(2)(b) and Officer Rivera told Officer Metsopulos to “stop the car.” Officer Metsopulos did a U-Turn and drove back towards § 87(2)(b). While driving towards § 87(2)(b), § 87(2)(b) was now facing the officers car as they drove towards him, Officer Rivera observed a bulge on § 87(2)(b)'s waistline. Officer Rivera was approximately five feet away from § 87(2)(b) still inside of the vehicle, when he first observed the bulge. The bulge was sticking out of § 87(2)(b)'s sweatpants, and it appeared to be the handle of a weapon. Officer Rivera explained that there was “no real shape” to the bulge, but it was causing § 87(2)(b)'s sweatpants to protrude and create the bulge that was approximately three inches in size. Officer Rivera explained that the way the bulge was holding § 87(2)(b)'s pants down and the way § 87(2)(b) was clutching the bulge made him believe that the bulge could have been caused by the handle of a pistol or knife.

Officer Rivera took a “lead role” in dealing with § 87(2)(b) during the stop. Officer Metsopulos stopped the vehicle, and Officer Rivera was the first officer out of the vehicle to address § 87(2)(b). Officer Rivera's intent on stopping § 87(2)(b) was to take a closer look at the bulge and to “see § 87(2)(b)'s demeanor.” After exiting the vehicle, Officer Rivera took his shield out and said “Police, excuse me.” § 87(2)(b) continued to hold onto his waistband area, but took his earphones out of his ear to address the officers. Officer Rivera immediately told § 87(2)(b) to “keep his hands away from his pockets. § 87(2)(b) “did not really” comply, but Officer Rivera only directed § 87(2)(b) to keep his hands away from his pockets once. § 87(2)(b) immediately became “combative” and he was “very upset that they were stopping him and was very rude towards us.” Officer Rivera could not comment more specifically on § 87(2)(b)'s demeanor, reiterating “just the tone of his voice was very loud.” Officer Rivera denied observing any additional furtive behavior during the initial stop beside § 87(2)(b) “getting loud” and “holding his waistline up.”

Because § 87(2)(b) was getting loud and appeared angry, Officer Rivera feared for his safety. He asked, “Can you walk over to my car?” and took hold of § 87(2)(b)'s hand

(which had been holding his waistband up) in order to lead him towards the car. Officer Rivera's first intention was to ask § 87(2)(b) about the bulge, but because he got loud and became combative, he was unable to inquire about the bulge before leading him towards the car. Officer Rivera elaborated that he wanted to keep § 87(2)(b) at least several feet away from him so he couldn't potentially take hold of his gun or anything else on his utility belt, so he decided to physically lead § 87(2)(b) to the car. § 87(2)(b) was not resistant and walked over towards the officers' vehicle with Officer Rivera's guidance. § 87(2)(b) had his cell phone (a Motorola Sidekick) in the other hand that Officer Rivera had not taken hold of, and he placed it on the car when he put his other hand on the vehicle, assuming a "frisk position" with both hands on the hood of the vehicle. Officer Rivera then "touched the area where the bulge was." The object he felt was located somewhere on the elastic line of § 87(2)(b)'s sweatpants. As soon as he touched the object causing the bulge, it felt "squishy" and felt like a cell phone holster that had been strapped to § 87(2)(b)'s waistline. Officer Rivera did not attempt to remove or look at the object to determine what it was as he realized immediately that it wasn't a weapon. After realizing that it was not a weapon, Officer Rivera ceased his frisk. He did not frisk any other area of § 87(2)(b)'s body beside his waistband. Officer Rivera denied reaching into any of § 87(2)(b)'s pockets or otherwise searching him. He did not observe Officer Metsopulos enter any of § 87(2)(b)'s pockets.

After the frisk, Officer Rivera asked § 87(2)(b) for his name, which he provided. Officer Rivera explained that § 87(2)(b) initially gave his names as "§ 87(2)(b)" before stating § 87(2)(b). The conversation at the end of the incident was brief, and after providing his name, § 87(2)(b) proceeded to walk off without saying anything further. As he walked away, § 87(2)(b)'s Sidekick remained on the car. Officer Rivera told § 87(2)(b) "Yo, your phone is on the car." § 87(2)(b) replied, "I don't want it" and walked off without his cell phone. Officer Rivera has never seen someone just refuse his property before and described § 87(2)(b)'s behavior as "childish." § 87(2)(b) never asked Officer Rivera or Officer Metsopulos for his name or badge number at any point during the incident.

Officer Rivera denied intentionally seizing § 87(2)(b)'s cell phone. After § 87(2)(b) left, Officer Rivera took § 87(2)(b)'s cell phone and looked through the contacts until he found what appeared to be § 87(2)(b)'s mother's phone number. He called § 87(2)(b)'s mother § 87(2)(b) and reached her at work. The officers drove to § 87(2)(b)'s location and returned § 87(2)(b)'s phone. § 87(2)(b) signed her name in Officer Rivera's memo book upon receiving his cell phone. No supervisor or other officer notified the officers that § 87(2)(b) was looking for his cell phone, and the officers returned the phone on their own volition.

Subject Officer: OFFICER JOSEPH METSOPULOS

- *Officer Metsopulos is a § 87(2)(b)-old white male § 87(2)(b). He has brown hair and brown eyes.*
- *On January 26, 2010, Officer Metsopulos worked from 5:30pm to 2:05am and was assigned to anti-crime patrol. He was dressed in plainclothes, working with Officer Rivera, and assigned to an unmarked Chevrolet Impala § 87(2)(e), § 87(2)(f).*

Memo Book [Enc. 12A-B]

At 7:45pm, Officer Metsopulos wrote, "1 male stopped, in front of § 87(2)(b) [250 report completed - CPW], § 87(2)(b). At 7:48pm, he noted, "Male walks off without cell phone." At 8:00pm, Officer Metsopulos wrote, "Delivered cell phone to mother § 87(2)(b) and at 8:05pm he noted, "Cell phone returned."

CCRB Statement [Enc. 13A-C]

On March 31, 2010, Officer Metsopulos was interviewed at the CCRB. Officer Metsopulos' statements regarding the stop of § 87(2)(b) were inconsistent with Officer Rivera's testimony. He corroborated that the area where the stop occurred was a "robbery prone location", and also affirmed that they had received no report of a crime or description of suspect prior to stopping § 87(2)(b). He also explained that they stopped § 87(2)(b) due to the presence of a visible bulge. However, his description of the bulge differed from the circumstances Officer Rivera described. Officer Metsopulos explained that he observed a bulge inside the front pouch pocket of § 87(2)(b)'s hooded sweatshirt, and § 87(2)(b) had been walking with his hand in the front pouch area of the hooded sweatshirt, over the bulge. Officer Metsopulos estimated that he was "no more than three" car lengths from § 87(2)(b) when observing the bulge. Upon seeing the bulge, Officer Metsopulos (who had been driving the vehicle), turned the car back around to enact the stop. The observation of the bulge was the only factor which drew Officer Metsopulos' suspicion. Officer Metsopulos thought the bulge was an outline of a weapon, more specifically, a gun. Officer Metsopulos could not recall the shape of the bulge. Officer Metsopulos encapsulated, "It was a bulge in his waistband area in a robbery prone location that might be a weapon."

The officers stopped their vehicle and approached § 87(2)(b). § 87(2)(b) had his hand inside the sweatshirt where the bulge was, and the officers' immediately asked § 87(2)(b) to remove his hand from his sweatshirt pocket. Officer Rivera was the first officer to address § 87(2)(b) who did not comply with the first directive, but complied on the second request and removed his hand from the pouch area. When he removed his hand, he had his cell phone inside of his hand.

The initial action of § 87(2)(b) refusing to take his hand out of his front pocket made Officer Metsopulos fear for his safety. This caused the officers to place § 87(2)(b) on the vehicle to conduct a frisk. § 87(2)(b) was also being "combative and argumentative" in response to the officers' stop, which further caused them to fear for their safety. Officer Metsopulos was also vague in his descriptions of § 87(2)(b)'s behavior, explaining simply that § 87(2)(b) was being "loud" and that he "didn't want to be stopped, and didn't want to listen to the reason why he was being stopped." While being brought to the vehicle, § 87(2)(b) would not let go of the cell phone which was in his hand (which was now out of his sweatshirt pocket). Officer Metsopulos elaborated that the way § 87(2)(b) was gripping his phone (and the fact that it could have been an object used to inflict harm on the officers), made him fear for his safety further. Officer Metsopulos was not sure how § 87(2)(b) released his cell phone, but believed that § 87(2)(b) was directed to stop holding it and § 87(2)(b) placed it on the hood of the car. Officer Metsopulos had difficulty elaborating the circumstances surrounding § 87(2)(b)'s frisk, believing that Officer Rivera conducted the frisk. § 87(2)(b) had removed the cell phone from the area where the bulge was, and had his hand up against the car. He explained that Officer Rivera still frisked "the bulge area." The officers determined that the bulge had been caused by § 87(2)(b)'s hand inside of his sweatshirt and his cell phone. Officer Metsopulos could not recall if a bulge was still there when Officer Rivera conducted the frisk. § 87(2)(b)'s pockets were not searched. Officer Metsopulos could not remember if § 87(2)(b) requested his name and badge number during the incident.

Officer Metsopulos confirmed that § 87(2)(b) left the scene after being made aware that his cell phone was on top of the vehicle, and he was unsure why § 87(2)(b) acted in this manner. He estimated the officers returned the phone to his mother approximately twenty minutes after the stop.

NYPD Documents

- A SPRINT [Enc. 14A] was generated from § 87(2)(b)'s 911 call, which initially went over as 10-39 (crime in the past) harassment at § 87(2)(b) [Enc. 14B]. The job was eventually closed as unnecessary.
- On January 26, 2010, at 8:00pm, the 122nd Precinct noted that § 87(2)(b) was present inside the station house to file a complaint [Enc. 15A-B]. The log notes, § 87(2)(b) feels he was unfairly stopped by MOS.”

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of April 6, 2010, with regard to the incident [Enc. 21A].

Civilian Criminal History

- § 87(2)(b) [Enc. 18].

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) [Enc. 4].

Subject Officers CCRB History

- Officer Rivera has been a member of the service for four years and there are no substantiated CCRB allegations against him [Enc. 3].
- Officer Metsopulos has been a member of the service for five years and there are no substantiated CCRB allegations against him [Enc. 2].

Conclusion

Identification of Subject Officers

- Officer Metsopulos and Officer Rivera both acknowledged that they stopped § 87(2)(b)
- § 87(2)(g)

Investigative Findings and Recommendations

Allegation Not Pleaded

- It is undisputed that Officer Rivera came into possession of § 87(2)(b)'s Sidekick during this incident. § 87(2)(g)

Allegation A) Officer Paul Rivera stopped § 87(2)(b)

Allegation B) Officer Joseph Metsopulos stopped § 87(2)(b)

Allegation C) Officer Paul Rivera frisked § 87(2)(b)

It is undisputed that § 87(2)(b) was stopped by Officer Rivera and Officer Metsopulos solely due to the observation of an amorphous bulge on his person. While both officers asserted that the nature of the bulge indicated that § 87(2)(b) was possibly in

Besides citing that the stop occurred in a high crime area, both officers denied that there were any additional factors that led to their stop. There was no report of a recent crime in the area, they had not been made aware of any crime pattern in the area before their tour, and they had not received a description of a suspect involved in any sort of crime prior to stopping § 87(2)(b) Kamins, New York Search and Seizure §2.04[3] notes “If innocuous behavior is found to have occurred in a high crime area, that fact alone will not provide the officer with a reasonable suspicion that the defendant was committing a crime” [Enc. II]. § 87(2)(g)

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§ 87(2)(g) In New York v. Cooper (2007) [Enc. IV-VIII], an appellate judge found that the observation of an amorphous bulge in combination with innocuous behavior did not provide an officer with reasonable suspicion to stop a livery cab and frisk the occupant to determine the nature of a bulge in the defendant's pant leg (New York v. Cooper, N.Y.S. 2d 546). In NYPD v. Mercurio (2000), [Enc. 1A-I], an administrative judge found that the observation of an amorphous, heavy appearing bulge near a suspect's waistband was not a sufficient justification for the officers to forcibly stop and frisk that individual to determine the nature of the bulge absent additional indications of criminality (Police Department v. Mercurio, DCT Case No. 75518/00). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation D) Officer Paul Rivera searched § 87(2)(b)

§ 87(2)(b) alleged that Officer Rivera removed his Sidekick from his front jean pocket after frisking him. Officer Rivera denied searching § 87(2)(b) and Officer Metsopulos denied observing such a search take place. The officers were consistent in their description that § 87(2)(b) was not searched as he was holding his phone in his hand during the frisk, eventually leaving his phone on the hood of their vehicle before leaving the scene. § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation E) Officer Paul Rivera refused to provide his name to § 87(2)(b)

Allegation F) Officer Joseph Metsopulos refused to provide his name to § 87(2)(b)

§ 87(2)(b) alleged that towards the end of the incident he asked both officers "What are your names?" at an audible volume only to be ignored by both officers before they left the scene. Both officers denied hearing § 87(2)(b) request their names before leaving. The circumstances surrounding this final allegation are the least clear. Both officers were accurately identified in the IAB referral report, but it is unclear how that identification was made as § 87(2)(b) did not know the officers' names at the time of his CCRB interview. § 87(2)(b) was relatively vague in his description of the conclusion of the incident, explaining that the officers simply got into their vehicle and left the scene without providing their names and with his cell phone in their possession. He was however, able to memorize the license plate number which the investigation verified as the vehicle the officers' were assigned to during the incident [Enc. 16A-L, 17]. The officers described a situation where § 87(2)(b) left the scene first, refusing to take his cell phone with him, and both officers denied hearing § 87(2)(b) request their names. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) Officer Rivera completed a UF-250 in regards to the stop, and he provided his name to § 87(2)(b) while he was

returning § 87(2)(b) s Sidekick, § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Team: _____

:

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date